
8:30 a.m. Law and Motion

1-888-4- ABATEMENT, INC. VS. SIEGLOCK

CASE NUMBER: 23CVG-01156

Tentative Ruling on Application for Judgment Debtor Examination: Applicant Northern California Collection Service, Inc., assignee of record, represented by Attorney Steven Cribb, seeks examination of judgment debtor Marc Sieglock. CCP § 708.110 requires personal service to be made on the judgment debtor at least thirty calendar days prior to the examination. No proof of service has been filed. Without timely service on the judgment debtor, the matter is dropped from calendar.

BLY, ET AL. VS. MARQUIS CARE AT SHASTA, ET AL.

CASE NUMBER: 25CV-0209458

Tentative Ruling on Three Motions to Compel Discovery Responses: Plaintiffs Laura Bly, Julie Dowell, and David Eatchell, individually and as successors-in-interest to the Estate of Bettie Eatchel seek an order compelling Defendants' responses to 1) Special Interrogatories, Set One, 2) Form Interrogatories, Set One, and 3) Requests for Production, Set One. Each set of discovery was served on April 1, 2026. No responses have been served. Defendants concede they have not served responses

A party has thirty days after service to respond to a Request for Production, Request for Admissions, Form Interrogatories, or Special Interrogatories. CCP §§ 2031.260(a), 2033.250(a), and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a), 2033.280(a), and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c).

Plaintiff has provided evidence that Plaintiff propounded the three sets of discovery at issue by mail on April 1, 2026. Defendant's Oppositions concede that responses were not timely served. Defendant argues that they will serve verified code compliant responses without objections prior to hearing on these Motions. There is no evidence before the Court that they have done so. Plaintiff did not request sanctions and did not provide evidence to support the Court's determination of a reasonable amount. Therefore, no sanctions will be imposed.

Plaintiffs' Motions to Compel responses to Special Interrogatories, Set One, Form Interrogatories, Set One, and Requests for Production, Set One are **GRANTED**. Proposed orders have been lodged and will be executed.

IN RE CHRISTIAN

CASE NUMBER: 26PB-0033218

Tentative Ruling on Three Petitions to Approve Minor Compromise: Ashish Christian seeks an order approving the compromise of claim on behalf of his minor son Josiah Christian. California Rules of Court, Rule 7.950 provides that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition provides the required information. Considering the nature of the minor's injuries and full recovery, the Court is prepared to find that the settlement

is in the best interest of the minor, if the voir dire process is completed to the Court's satisfaction.

The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Hearing is needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at the hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Petitioner and minor are required to appear. Counsel will voir dire the Petitioner about the terms of the settlement, any other potential sources to increase the settlement amount, whether the minor has fully recovered and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. If satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Orders and schedule a hearing for review regarding confirmation of deposit.

CROWELL VS. DAY

CASE NUMBER: 24CH-0204259

Tentative Ruling on Application for Judgment Debtor Examination: Applicant Justin Day, proceeding in pro per, seeks examination of judgment debtor James Dean Crowell. CCP § 708.110 requires personal service to be made on the judgment debtor at least thirty calendar days prior to the examination. Petitioner filed a Proof of Personal Service on July 1, 2026. It states that personal service was accomplished on June 30, 2026 – which is not 30 calendar days prior to today's hearing date. The Court also notes that the Proof of Service for the Memorandum of Costs filed on March 30, 2026 is invalid, because it was served by Petitioner. Service must be made by a nonparty to the case. Without timely service on the judgment debtor, the matter is dropped from calendar.

DURA CRANE, INC. VS. J. L. AMONETT CO.

CASE NUMBER: 25CVG-00038

Tentative Ruling on Motion to Recover Reasonable Attorney Fees: Plaintiff Dura Crane, Inc. moves for an award of reasonable attorneys' fees following entry of judgment in which the Court found in favor of Plaintiff. Although the motion was properly noticed, Defendant Amonett Co. did not oppose the motion.

As the prevailing party, Plaintiff moves for attorney's fees based on the parties' underlying contract. "Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs, as hereinafter provided." CCP § 1021. Allowable costs include "Attorney's fees, when authorized by any of the following: (A) Contract. (B) Statute. (C) Law." CCP § 1033.5(a)(10).

(a) In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs.

Where a contract provides for attorney's fees, as set forth above, that provision shall be construed as applying to the entire contract, unless each party was represented by counsel in the negotiation and execution of the contract, and the fact of that representation is specified in the contract.